

2014 WL 1881535 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Timothy MILES, Plaintiff,

v.

CITY OF NEW YORK, P.O. **Brandon Gembecki**, and Officers John and James Doe,
names being fictitious and meant to designate additional offending officers, Defendants.

No. 0302510-2014.
May 5, 2014.

Summons

[Jonathan L. Gleit](#), Esq., 888 Grand Concourse, Suite 1-O, Bronx, NY 10451, (718) 742-0200, for plaintiff.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint to be assessed by the Court.

Dated: Bronx, N.Y. May 1, 2014

By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiff

888 Grand Concourse

Suite 1-O

Bronx, NY 10451

(718) 742-0200

VERIFIED COMPLAINT

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF TIMOTHY MILES

1. At the time of the commencement of this action, Plaintiff TIMOTHY MILES was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about February 13, 2013, P.O. **BRANDON GEMBECKI** was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about February 13, 2013, at approximately 5 P.M., P.O. **BRANDON GEMBECKI** was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about February 13, 2013, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
8. That on and about February 13, 2013 at approximately 5 P.M., OFFICER[S] JOHN AND / OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.
9. That on or about February 13, 2013 at approximately 5 P.M., at or near the corner of East 205th Street and Jerome Avenue, Bronx, New York, the plaintiff TIMOTHY MILES was improperly arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine TIMOTHY MILES.
10. That at the above time and place, plaintiff TIMOTHY MILES was a operator of an automobile that was stopped by the defendants without any reasonable suspicion that a crime had been committed.
11. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.
12. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement thereby causing fright, shock, emotional distress and physical consequences.
13. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
14. That during the aforementioned arrest, plaintiff was subjected to unnecessary, excessive, unjustified force by the defendants.
15. That the defendants P.O. **BRANDON GEMBECKI** and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.
16. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and threaten and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

17. That all criminal charges brought against plaintiff, which were brought under docket number 2013BX008957 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of February 13, 2013, were dismissed by Judge Shari Ruth Michels on January 7, 2014 and the criminal proceedings were terminated in plaintiff's favor.

18. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

19. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately three hundred and twenty eight days.

20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy, practice and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of stopping and searching automobiles without reasonable suspicion that a crime had been committed.

21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy, practice and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, and repeatedly providing false information and testimony without reprimand to the offending officers;

22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy, practice and procedure of arresting persons for charges such as Resisting Arrest and Obstructing Governmental Administration in ill-fated attempts at justifying their own use of excessive, unnecessary, unjustified force.

23. That said illegal and unlawful automobile stops, the arrests of innocent persons without reasonable or probable cause and wrongly charging persons with charges such as Resisting Arrest and Obstructing Governmental Administration in ill-fated attempts at justifying their own use of excessive, unnecessary, unjustified force, are a matter of institutional policy and record and openly acknowledged or known by the defendants, and promulgated and/or condoned by their supervisors, including but not limited to commanding officers including Raymond Kelly, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

24. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals. Additionally in the case of *Floyd, et al. v. City of New York, et al.*, In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority men without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist as to each arrested individual. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at a Bronx Count police Precinct in 2009.

25. Moreover, patterns of such unlawful automobile stops and wrongful arrests of multiple persons when individualized reasonable or probable cause is lacking and has occurred to such individuals such as for instance, RENA RODRIGUEZ, RAMON RODRIGUEZ, Jr. and RAMON RODRIGUEZ, Sr. on or about March 20, 2010 at approximately 1 P.M., at or near the intersection of Unionport Avenue and Tremont Avenue, Bronx, New York; DANIEL TORRES on or about February 16, 2010 at approximately 7 P.M., near 3073 Park Avenue, Bronx, New York and GIOVANNI RAMIRIEZ on October 22, 2010 at

or near the northeast corner of East Tremont Avenue and Waterbury Avenue, Bronx, New York and LUCILLA RODRIGUEZ on October 4, 2012 in front of 2719 Morris Avenue, Bronx, New York.

26. Moreover, patterns of such the aforesaid conduct of arresting persons for such charges as disorderly conduct in an ill fated attempt at justifying defendants' unnecessary unjustified excessive force and without individualized reasonable or probable cause of such charges is demonstrated because multiple individuals have been subject to the same unjustified and fabricated charges, to wit, as a sample and small example: ESHAWN SUTTON was wrongfully subject to similar charges after being assaulted by P.O. JOEY RODRIGUEZ on or about August 17, 2010 at approximately 1:55 P.M., in front of 500 East 165th Street, Bronx, New York; ARAMIS RODRIGUEZ was wrongfully subject to similar charges after being assaulted by Det. LISANDRO RIVERA on or about April 10, 2009 at approximately 2:30 P.M., at the southeast corner of Faile Street and Westchester Ave., Bronx, New York; JUAN VALDIVIA was wrongfully subject to similar charges after being assaulted by P.O. JAIRO GONZALEZARANGO and P.O. ROBERT, GAZSY on or about January 16, 2010 at approximately 7:15 P.M., in front of 106 West 143rd Street, New York, New York; BENETIO MYTON was wrongfully subject to similar charges after being assaulted by P.O. ELEANOR WALSH and P.O. BRANDON RAVELO on or about March 30, 2010 at approximately 8:45 P.M., at or near the intersection of East 220th Street and White Plains Road, Bronx, New York, ANTOINE LEARY was wrongfully subject to similar charges after being assaulted by Det. DANIXON CABRERA inside 916 Stebbins Avenue, Bronx, New York, and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

27. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

28. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of [Title 42 U.S.C. 1983, et seq.](#), by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under [Title 42 U.S.C. 1983, et seq.](#)

29. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

30. That as a result of the foregoing, the plaintiff TIMOTHY MILES was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF TIMOTHY MILES

31. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 30 as though more fully set forth herein.

32. That by Order of Justice Mitchell J. Danziger dated April 24, 2014 under Index No. 260244/14 in the Supreme Court of Bronx County, plaintiff caused a Notice of Claim, deemed timely thereunder, sworn to by or on behalf of the claimant, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused

by the defendant, and defendant scheduled a General Municipal Law §50h hearing of plaintiff subsequent to the time required by law to commence the within action, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

33. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

34. That on or about February 13, 2013 at approximately 5 P.M., at or near the corner of East 205th Street and Jerome Avenue, Bronx, New York, the plaintiff TIMOTHY MILES was improperly arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine TIMOTHY MILES.

35. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

36. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

37. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement, thereby causing fright, shock, emotional distress and physical consequences.

38. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

39. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

40. That as a result of the foregoing, the plaintiff TIMOTHY MILES was damaged in a sum which exceeds the jurisdiction of all lower Courts

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF TIMOTHY MILES

41. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 40 as though more fully set forth herein.

42. That during his aforesaid arrest the defendants, their agents, servants and/ or employees utilized unnecessary, excessive and unjustified force against the plaintiff.

43. As a result of the aforesaid assault, plaintiff TIMOTHY MILES received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

44. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

45. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

46. That as a result of the foregoing, the plaintiff TIMOTHY MILES was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF TIMOTHY MILES

47. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 46 as though more fully set forth herein.

48. That the defendants, their agents, servants and/or employees prosecuted a criminal action against the plaintiff without any basis in law or fact.

49. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiff due to racism and prejudice and without any basis in law or fact.

50. That the defendants P.O. **BRANDON GEMBECKI** and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.

51. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

52. That all criminal charges brought against plaintiff, which were brought under docket number 2013BX008957 in the Criminal Court of the City of New York, Bronx County regarding the incidents of February 13, 2013, were dismissed by Judge Shari Ruth Michels on January 7, 2014 and the criminal proceedings were terminated in plaintiff's favor.

53. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

54. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately three hundred and twenty eight days.

55. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

56. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

57. That as a result of the foregoing, the Plaintiff TIMOTHY MILES was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF TIMOTHY MILES

58. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 57 as though more fully set forth herein.

59. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

60. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper conducting automobile stops, of the arrest of individuals, and in the proper utilization of force during arrests.

61. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff TIMOTHY MILES was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

62. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third, Fourth and Fifth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated:Bronx, N.Y. May 1, 2014

By: Jonathan L. GLEIT, ESQ.

Attorney for Plaintiff

TIMOTHY MILES

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